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25-CIV-06649 DOROTHY CARONNA VS. META PLATFORMS, INC.

LINE 4

DOROTHY CARONNA
META PLATFORMS, INC.

PRO PER
MICHELLE VISSER

DEFENDANT: META PLATFORMS, INC.'S DEMURRER TO AMENDED COMPLAINT

TENTATIVE RULING:

Defendant Meta Platforms, Inc.'s demurrer to Plaintiff's First Amended Complaint ("FAC") filed on October 31, 2025, for failure to state sufficient facts upon to constitute a cause of action pursuant to Code of Civil Procedure section 430.10, subdivision (e), is SUSTAINED WITHOUT LEAVE TO AMEND.

Initially, the court notes that defendant provided the improper address for the hearing because the matter was most recently reassigned on April 30, 2026, to the Honorable David A. Silberman, Department 11, effective May 11, 2026. Department 11 is located at the San Mateo Superior Court Central Branch Courthouse, Courtroom G, 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].) Because the matter has been reassigned three times in the less than one year since its inception, the Court finds the error understandable but notes the error for parties' clarification regarding hearing location and judicial officer. It is also of note that Defendant included the correct judge on the face of its reply but the wrong Department number.

Plaintiff is a former paying customer of Meta Platform services and alleges she was banned from the platform on June 2, 2025, for her alleged breach of terms of service. However, after she was banned, she continued to be billed in July, August, September and December 2025 for business ads. The FAC raises a cause of action for general negligence because Defendant Meta owed plaintiff a duty to stop charging her for services she was never going to get after being banned from their platform.

Defendant filed a demurred to the FAC on the grounds that it fails to state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure section 430.10 subdivision (e) because the cause of action fails to state a duty of care for a negligence claim and, additionally, the economic loss rule precludes this claim. Plaintiff opposes and contends that she is unable to file this action under breach of contract because she has been banned from accessing her account information.

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013.) The "demurrer tests the sufficiency of the plaintiff's complaint, *i.e.*, whether it states facts sufficient to constitute a cause of action upon which relief may be based." (*Villarroel v. Recology, Inc.* (2023) 97 Cal.App.5th 762, 772.) Thus, a court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*Id.* at 1008), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

Plaintiff's claim arises solely from the service contract she had with Defendant Meta.

California courts have long held that a breach of contract, standing alone, does not give rise to tort liability. As the California Supreme Court stated in *Erlich v. Menezes* (1999) 21 Cal. 4th 543, 981, conduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract arising from principles of tort law. The foundational principle is that an omission to perform a contract obligation is never a tort unless that omission is also an omission of a legal duty. The California Supreme Court made this principle clear in *Freeman & Mills, Inc. v. Belcher Oil Co.* (1995) 11 Cal. 4th 85, which overruled the earlier *Seaman's Direct Buying Service* decision and established a general rule precluding tort recovery for non-insurance commercial contract breach in the absence of a violation of an independent duty arising from principles of tort law. Courts will generally enforce a breach of a contractual promise through contract law, except when the actions constituting the breach violate a social policy that merits the imposition of tort remedies.

The economic loss rule is the primary doctrinal mechanism that bars tort claims in contract disputes. As explained by the California Supreme Court in *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905, 922, there is generally no recovery in tort for negligently inflicted purely economic losses. *See also Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal. 4th 979, 988. In *Robinson Helicopter*, the California Supreme Court articulated the rule succinctly: "[t]he economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise." (*Id.*)

As Defendant argues, Plaintiff has not alleged any facts establishing a duty to her outside of a contractual one or any losses other than economic ones related to her contract.

Accordingly, defendant's demurrer is SUSTAINED.

Leave to Amend

"It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action... But the court should deny leave to amend where the facts are not in dispute and no liability exists under substantive law... It is not up to the judge to figure out how the complaint can be amended to state a cause of action. Rather, the burden is on plaintiff to show *in what manner* plaintiff can amend the complaint, and *how* that amendment will change the legal effect of the pleading." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).

While opposing the demurrer, Plaintiff has not asked for leave to amend and has failed to identify any facts that Plaintiff contends Plaintiff could allege and that would cure the legal defects in the Amended Complaint. Accordingly, leave to amend is DENIED.

However, if Plaintiff believes it is possible to address the deficiencies identified in this tentative, Plaintiff must contest the tentative and appear to explain in detail what facts Plaintiff can allege to cure. If Plaintiff does contest, Defendant should be prepared to address factually Plaintiff's assertion that she has been billed for service she does not want, i.e., whether that is happening and why.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CLJ-03993 JASEN FRANK MEYN VS. MGA INSURANCE COMPANY, INC (*Complaint Filed: 05/28/25*)
LINE 5

JASEN FRANK MEYN
MGA INSURANCE COMPANY, INC

PRO PER

PLAINTIFF: JASEN MEYN'S MOTION TO CONSOLIDATE ACTIONS (with 25CIV06981 - *Complaint Filed: 09/22/25*)

TENTATIVE RULING:

Plaintiff Jasen Frank Meyn's Motion to Consolidate Actions is DENIED without prejudice.

Plaintiff seeks to consolidate this limited civil matter (25CLJ03993), which is assigned to Department 11 with unlimited civil matter 25CIV06981, which is assigned to Department 4. Plaintiff indicates that the unlimited civil matter should be the dominant case.

But Plaintiff has not complied with California Rule of Court 3.350 in any manner, including but not limited to, failing to comply with subsection (a)(1)(C), which requires that the motion be filed in each case sought to be consolidated. The same rules apply to Plaintiff despite his pro per status. *Rappleyea v. Campbell* (1994) 8 Cal. 4th 975, 984–85 (“[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation.”).

Despite the two cases being more than one year old (in one case) and almost a year old (in the other case), Plaintiff has not yet successfully served them. Plaintiff has obligations to diligently prosecute his cases that he is not yet meeting.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. The Court will prepare the Order.
